

M/s Shri Balaji Enterprises v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 February 2021 · Writ-C No. 4587 of 2021 · **Writ disposed; representation under Clause 6.14 directed; sealing stayed on first installment.**

HEADNOTE

A consumer facing a recovery citation who offers to pay electricity arrears in installments may be directed, without examination of the citation on merits, to move a representation for decision under Clause 6.14 of the Electricity Supply Code, 2005. The Court added that if the first agreed installment is deposited the property shall not be sealed, and that default forfeits that protection.

FACTUAL SUMMARY

The petitioners, M/s Shri Balaji Enterprises and another, approached the Allahabad High Court seeking certiorari to quash a recovery citation dated 25 November 2020 issued by respondent no. 4. They submitted that they were ready and willing to deposit the outstanding sum of Rs.23,96,316 in easy installments. Counsel for the distribution licensee (respondents 2 and 5) stated that a request for installment payment of electricity dues could be considered and decided under Clause 6.14 of the Electricity Supply Code, 2005, and sought reasonable time for that exercise.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility on recovery citation

HOLDING

Without examining the merits of the recovery citation, the Court disposed of the writ by directing the petitioners to move a representation before respondent no. 5 within three weeks, to be considered and decided strictly in accordance with law under Clause 6.14 of the Electricity Supply Code, 2005, preferably within four weeks. If the first installment as agreed between the parties is deposited, the property shall not be sealed; default disentitles the petitioners to that protection. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court accepted the licensee's submission that a plea to pay electricity recovery dues in easy installments is to be considered under Clause 6.14, and remitted a representation without granting or refusing the facility on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CITATION DATED 25.11.2020

The Court expressly declined to go into the merits. ¶ 1

NOT DECIDED — ENTITLEMENT TO INSTALLMENT FACILITY UNDER CLAUSE 6.14

Left to respondent no. 5 to consider and decide in accordance with law. ¶ 1